

Terms of Sale and Delivery for Heavy Cargo Lifters

1. Application

These Terms of Sale and Delivery constitute, at any time, an integrated part of all agreements/contracts/deliveries entered into by Heavy Cargo Lifters and the buyer, unless otherwise agreed in writing with the buyer.

2. Offer

Offers are valid for one (1) month from the date of the offer and are provided to subject unsold.

3. Prices

All prices stated in offers, order confirmations and purchase agreements are current prices based on the interest rates, exchange rates, duties and taxes in effect at the date of the offer or order confirmation, including import and export duties, but excluding value added tax. Prices are furthermore based on sub-suppliers' current prices. Heavy Cargo Lifters reserves the right to amend the prices in case of any amendments of the factors above.

4. Trade-in machinery

If trade-in machines are part of the agreement between Heavy Cargo Lifters and the buyer, the buyer bears the risk for such material up until delivery to Heavy Cargo Lifters. The prices for such trade-in machinery have been based on the condition that the equipment in question is operational, maintained in accordance with instructions and inspected up until the delivery to Heavy Cargo Lifters, unless otherwise agreed in writing with Heavy Cargo Lifters.

Damages and defects will be invoiced to the buyer if they occur after signing of the agreement.

5. Delivery

The stated delivery times are calculated from the time when the final order has been placed and all information necessary for the execution of the order is available.

Unless otherwise agreed, delivery takes place from the location where the offered equipment is located.

Heavy Cargo Lifters reserves the right to make partial deliveries.

6. Delivery reservation

In case of strike, lockout or other work stoppage at Heavy Cargo Lifters or its suppliers, which the delivery is dependent upon, and in case of war, blockade, bans, breakdown, traffic disruptions, including ice obstacles, fire or other unforeseen obstacles, which prevents or significantly complicates the delivery, the delivery will be postponed without Heavy Cargo Lifters being held responsible as long as this obstacle exists. Heavy Cargo Lifters reserves the right to cancel the order without incurring liability in case of supplier failure or in case of circumstances as the ones described above.

7. Payment

If no other agreement exists between the buyer and Heavy Cargo Lifters, payment is due before delivery.

If the buyer cannot receive the goods at the agreed time, the purchase price falls due for payment, notwithstanding that the goods have not been delivered.

In case of missing payment, Heavy Cargo Lifters is entitled to cancel the agreement without notice and claim damages for any loss.

If the invoice due date is exceeded, interest of 1.5% per month will be charged.

The buyer is not entitled to set off any counterclaims without an agreement that is clear to both parties.

7.1. Foreign trade

If no other agreement exists between the buyer and Heavy Cargo Lifters, payment for the purchased goods falls due before pick-up from Heavy Cargo Lifters.

8. Amendment of order

The buyer's amendment of the order after receipt of the signed rental agreement/leasing agreement will trigger a payment that represents the actual cost to Heavy Cargo Lifters, however, as a minimum 750 EUR, VAT excluded, per agreement. The amount will be invoiced to the buyer by Heavy Cargo Lifters.

9. Ownership reservation

Ownership of the sold goods is retained by Heavy Cargo Lifters until the purchase price has been paid in full.

10. Defects and complaints

Upon delivery, the buyer will promptly inspect the delivered goods in order to determine whether they are in the condition specified in the contract. Complaints concerning errors and defects must be in writing and must be submitted at the latest on the fifth working day following delivery.

The buyer's amendment of or intervention with the goods sold, without Heavy Cargo Lifters's prior written consent, will release Heavy Cargo Lifters from any obligations.

11. Limitation of liability

Claims for damages against Heavy Cargo Lifters cannot exceed the invoice amount of the goods sold.

Heavy Cargo Lifters is not liable for any operational loss, loss of profits or other indirect losses caused by delay or defects in the delivered goods.

12. Product liability

Product liability can only be imposed on Heavy Cargo Lifters if so dictated by the current legislation in force.

13. Jurisdiction and governing law

Any dispute shall be settled according to Dutch law by the court in Heavy Cargo Lifters's primary business area.